

26STCV08323 26STCV08323

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-06-25

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Case Number: 26STCV08323 Hearing Date: June 25, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

KAMI

BROYLES, and individual,

Plaintiff,

vs.

PLINY

PORTER, an individual, LESLIE JEAN PORTER, an individual, and DOES 1 through

25, inclusive,

Defendants.

Case No.:

26STCV08323

Hearing

Date:

June 25, 2026

[TENTATIVE]

ORDER GRANTING UNOPPOSED MOTION TO
QUASH SERVICE OF SUMMONS

I. BACKGROUND

Plaintiff Kami Broyles ("Plaintiff") filed this action against defendants Pliny Porter ("Defendant") and Leslie Jean Porter arising from an alleged breach of contract for attorney's fees, in which defendants allegedly failed to pay \$14,226.74 in attorney's fees. The complaint has four causes of action based upon the alleged breach.

On April 16, 2026, Plaintiff filed proof of substitute service on Defendant Pliny Porter, alleging Defendant was served on April 9, 2026, at 6:52 p.m. at 67995 Seven Oaks Drive, Cathedral City, California 92234. Proof of service by mail states Defendant was served via mail on April 13, 2026, at the same address.

On May 26, 2026, Defendant filed the instant motion to quash service of the summons.

Plaintiff did not file an opposition.

II. LEGAL
STANDARD

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction". (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.)

When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the existence of jurisdiction by proving the facts requisite to an effective service. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) "The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements." (Floveyor Internat.,

Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 790.)

“On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts”. (Brown v. Garcia (2017) 17 Cal.App.5th 1198, 1203; see also Sheard v. Superior Court (1974) 40 Cal.App.3d 207, 211 “[W]here a defendant properly moves to quash service of summons the burden is on the plaintiff to prove facts requisite to the effective service.”].)

III. DISCUSSION

Defendant

requests the Court quash service of summons as Defendant was never served with the summons and complaint. (Mot. p. 6 ¶¶ 1-5.) Defendant argues that the Cathedral City address where service documents were left and mailed to was not his dwelling. (Mot. p. 6, ¶ 13.) Moreover, Defendant argues that Plaintiff did not exercise reasonable diligence to effect personal service at Defendant’s home in New York, where Plaintiff knows Defendant resides, before resorting to substitute service. (Mot. p. 7, ¶¶ 3-6.)

Defendant

declares that he resides at 244 Fifth Avenue, Suite 2813, New York, New York and does not reside at 67995 Seven Oaks Drive, Cathedral City, California. (Pliny Porter Decl., ¶ 2.) Defendant provides the declaration of his sister, Leslie Jean Porter, who corroborates that Defendant does not reside at the California address and is not a “Co-Occupant” as listed on the proof of service. (Leslie Jean Porter Decl., ¶¶ 2, 4.) Defendant declares that on April 9, 2026, he was at the personal residence of Monella Kaplan located at 11415 Morning Grove Drive, Las Vegas, Nevada, and not in California. (Pliny Porter Decl., ¶¶ 3-4.) Defendant declares that there has been no attempt to effectuate personal service on him at his New York address. (Pliny Porter Decl., ¶ 8.) Further, Leslie Jean Porter declares that she notified the process server that she was not authorized to accept service of legal paperwork on Defendant’s behalf. (Leslie Jean Porter Decl., ¶ 3.) Based on this, the April 9, 2026, substituted service was improper.

Defendant’s

moving papers call into question the validity of Plaintiff's proof of service, which asserts Defendant was served through substitute service and mail with the summons and complaint. When a defendant files a motion to quash, the burden is on the plaintiff to establish that service of the summons and complaint was proper. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

As Plaintiff have failed to file an opposition to the motion, Plaintiff have failed to meet Plaintiff's burden. As such, Defendant's motion must be granted. Even without the foregoing, Defendant has submitted sufficient evidence to show the motion should be granted.

IV. CONCLUSION

Defendant Pliny Porter's motion to quash service of summons and complaint is therefore GRANTED, without prejudice.

Moving Party is ordered to give notice.

DATED:

June 25, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed

by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the

parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.